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# Introduction

The Cato Institute stands for the foundational American values of individual liberty, limited government, free markets, and peace. The Declaration of Independence and the Constitution established American independence and our form of government to guard those values by restricting government power primarily to the protection of individual rights. For almost 50 years, Cato scholars have not shied away from criticizing policies that strike against our values and the Constitution, nor do we hold back praise when we see those values upheld. In that spirit, we introduce the *Cato Handbook on Executive Orders and Presidential Directives* to guide the next administration.<sup>1</sup>

Article I of the Constitution vests Congress with the power to legislate within the confines of its enumerated powers.<sup>2</sup> Article II vests the president with “executive power,” which encompasses the duty to “take Care that the Laws be faithfully executed” and the president’s status as the commander in chief of the armed forces, which are much more general powers than those granted to Congress.<sup>3</sup> However, successive Congresses have gradually delegated much of their power to the president or stood idly by as presidents have usurped more power that is legislative in nature and effect. National crises, such as the Civil War, the Spanish-American War, the Great Depression, the World Wars, and the Global War on Terrorism, were the impetuses for many of the surges in presidential power, but the power never reverted to its former limits at the conclusion of those emergencies.<sup>4</sup> Such legislative or quasi-legislative action by the president usurps Congress’s legislative power. The president’s power is now so gargantuan that it alone is sufficient reason to focus on the president’s means

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1. David Boaz, ed., *Cato Handbook for Policymakers*, 9th ed. (Washington: Cato Institute, 2022), p. 1.

2. US Const. art. I.

3. US Const. art. II; John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 367–68; and Justin Keeton, “Executive Orders: What Is the Scope of Executive Authority?,” *American Journal of Trial Advocacy* (blog), October 7, 2019.

4. Tara L. Branum, “President or King? The Use and Abuse of Executive Orders in Modern-Day America,” *Journal of Legislation* 28, no. 1 (2002): 6; Robert Higgs, *Crisis and Leviathan: Critical Episodes in the Growth of American Government* (New York: Oxford University Press, 1987); Committee on Government Operations, “Executive Orders and Proclamations: A Study of a Use of Presidential Powers,” House of Representatives, December 1957, 35–36.

of exercising power.<sup>5</sup> Nowhere is this increase in executive power more apparent than in the proliferation of executive orders (EOs) and other executive proclamations, memoranda, directives, executive agreements, and edicts with the force of law.

## THE TAXONOMY OF EXECUTIVE ORDERS

American law does not define an executive order despite it being the president's most important means of wielding power.<sup>6</sup> In practice, EOs are written directives that have the force of law and are issued by the president to direct and manage how federal agencies, federal employees, or department heads operate and perform their duties and to set other policies for the executive branch to follow.<sup>7</sup> The major statutory requirement for EOs is that they must be published in the *Federal Register*; the same is true for executive proclamations.<sup>8</sup> Presidents have issued EOs that set the standards for the "preparation, presentation, filing, and publication" for EOs and executive proclamations, but these are standards imposed by presidents on themselves and so are unenforceable and ignored when inconvenient.<sup>9</sup> There is no specific mention of EOs or other presidential directives in the Constitution like there is for Congress's legislative process for the deliberation of bills.<sup>10</sup> This is a source of ambiguity but, to be clear, not as damning a criticism as it first appears. Other important features of our system, like judicial review accomplished through written opinions, are underspecified in the Constitution but no less lawful.

EOs purport to derive their authority from the president's powers in Article II of the Constitution, or from an express or implied statutory delegation of power by

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5. "Executive Orders in Times of War and National Emergency: Report of the Special Committee on National Emergencies and Delegated Emergency Powers," Senate, June 1974, p. 1.

6. Abigail A. Graber, "Executive Orders: An Introduction," Congressional Research Service, March 29, 2021, p. 1; Jennie Holman Blake, "Presidential Power Grab or Pure State Might? A Modern Debate over Executive Interpretations on Federalism," *BYU Law Review* 2000, no. 1 (2000): 296; Kevin M. Stack, "The Statutory President," *Iowa Law Review* 90, no. 2 (January 2005): 546–47; and John C. Duncan Jr., "A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role," *Vermont Law Review* 35, no. 2 (2010): 333.

7. Robert B. Cash, "Presidential Power: Use and Enforcement of Executive Orders," *Notre Dame Law Review* 39, no. 1 (1963): 44; John C. Duncan Jr., "A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role," *Vermont Law Review* 35, no. 2 (2010): 333; and Committee on Government Operations, "Executive Orders and Proclamations: A Study of a Use of Presidential Powers," House of Representatives, December 1957, p. 1.

8. 44 U.S.C. § 1505.

9. "Executive Orders in Times of War and National Emergency: Report of the Special Committee on National Emergencies and Delegated Emergency Powers," Senate, June 1974, pp. 4–5.

10. US Const. art. I, sec. 7.

Congress to the president.<sup>11</sup> There are several theories of the scope of “executive power,” and these differences directly influence the types of EOs that a president can issue.<sup>12</sup> Often, EOs are innocuous and can clarify laws, streamline operations between different federal agencies, and realize “the objectives of congressional legislation by various means of enforcement.”<sup>13</sup> For instance, the first EO issued by President George Washington asked the heads of executive departments to describe their jobs and the current state of the union.<sup>14</sup>

Other times, EOs can interpret or expand the scope of legislation beyond its text or Congress’s intent and be “formidable instruments of power” by, among other actions, ordering executive agencies to issue regulatory rules.<sup>15</sup> President Bill Clinton’s adviser Paul Begala summed up the power of modern EOs best when he said, “Stroke of the pen. Law of the land. Kind of cool.”<sup>16</sup> The most infamous EO in American history ordered the internment of Japanese Americans and lawful residents in camps during World War II.<sup>17</sup> Unlike legislation, EOs do not need to pass both houses of Congress. Nor do presidents need to navigate the legal hoops and constraints of the Administrative Procedure Act when they pick up a pen or phone.<sup>18</sup> Large numbers of EOs do not even reference any specific legal authority for the president’s action and often rely on sweeping claims of authority or vaguely reference “statutes.”<sup>19</sup> For instance, President Barack Obama issued 19 EOs in 2011 that generally claimed they were justified by “the authority vested in me as president by the Constitution and the laws of the United States of America.”<sup>20</sup>

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11. Abigail A. Graber, “Executive Orders: An Introduction,” Congressional Research Service, March 29, 2021, p. 1; and Kevin M. Stack, “The Statutory President,” *Iowa Law Review* 90, no. 2 (January 2005): 539–600.

12. Jennie Holman Blake, “Presidential Power Grab or Pure State Might? A Modern Debate over Executive Interpretations on Federalism,” *BYU Law Review* 2000, no. 1 (2000): 297.

13. John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 334.

14. Abigail A. Graber, “Executive Orders: An Introduction,” Congressional Research Service, March 29, 2021, p. 1; and John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 339.

15. John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 366; and Erica Newland, “Executive Orders in Court,” *Yale Law Journal* 124, no. 6 (2015): 2031.

16. James Bennet, “True to Form, Clinton Shifts Energies Back to US Focus,” *New York Times*, July 5, 1998.

17. Exec. Order No. 9066 (February 19, 1942).

18. Erica Newland, “Executive Orders in Court,” *Yale Law Journal* 124, no. 6 (2015): 2031–32; and John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 337.

19. “Executive Orders in Times of War and National Emergency: Report of the Special Committee on National Emergencies and Delegated Emergency Powers,” Senate, June 1974, p. 7.

20. Erica Newland, “Executive Orders in Court,” *Yale Law Journal* 124, no. 6 (2015): 2052.

Presidents have shifted the scale and scope of EOs over time, and the courts have responded by *mostly* tolerating the extension of executive power.<sup>21</sup> This extension has ridden apace with the general increase in government powers that the Constitution never delegated to the federal government or Congress.<sup>22</sup> Plaintiffs who challenge EOs in court have the legal burden of proving that the order exceeds the authority of the president. Courts will bend over backward to approve such EOs unless they clearly conflict with a statute—even going so far as to rule that Congress’s silence on an EO is post hoc congressional acquiescence of the EO.<sup>23</sup> To be sure, federal courts have occasionally restrained the power of presidential EOs, as in the infamous steel seizure case when President Harry Truman issued EO 10340 to direct the secretary of commerce to take possession of and operate several steel mills owned by private firms.<sup>24</sup> The DC Circuit Court of Appeals also invalidated EO 12954, which was issued by President Clinton and barred the government from entering into contracts with firms that hire strikebreakers.<sup>25</sup> In 1935, the Supreme Court *indirectly* invalidated five EOs issued by President Franklin Delano Roosevelt (FDR) when it unanimously held that the National Industrial Recovery Act was unconstitutional, but that case did not specifically consider the legality of the EOs.<sup>26</sup> Until 1999, the courts had struck down only 14 EOs in whole or in part.<sup>27</sup>

More often, the courts have affirmed or expanded presidential power and flexibility in issuing EOs with little underlying theory and chaotic results.<sup>28</sup> Courts review EOs on a case-by-case basis, which has produced few bright-line rules that indicate when a president steps outside their legal authority.<sup>29</sup> The general effect of this legal

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21. Erica Newland, “Executive Orders in Court,” *Yale Law Journal* 124, no. 6 (2015): 2026.

22. William J. Olson and Alan Woll, “Executive Orders and National Emergencies: How Presidents Have Come to ‘Run the Country’ by Usurping Legislative Power,” Cato Institute Policy Analysis no. 358, October 28, 1999, p. 8.

23. John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 365, 374–76.

24. *Youngstown Sheet & Tube Co. v. Sawyer*, 343 US 579 (1952); Exec. Order No. 10340, 17 Fed. Reg. 3139 (April 10, 1955); and Abigail A. Graber, “Executive Orders: An Introduction,” Congressional Research Service, March 29, 2021, pp. 8–11.

25. John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 365, 389; and *Chamber of Commerce of the United States v. Reich*, 74 F.3d 1322 (DC Cir. 1996).

26. *Schechter Poultry Corp. v. United States*, 295 US 495 (1935).

27. Tara L. Branum, “President or King? The Use and Abuse of Executive Orders in Modern-Day America,” *Journal of Legislation* 28, no. 1 (2002): 59.

28. Erica Newland, “Executive Orders in Court,” *Yale Law Journal* 124, no. 6 (2015): 2035–36, 2040.

29. John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 376.

disorder is an inexorable court-approved increase in presidential power and privileges without correspondingly expanded responsibilities or review. Presidential power has thus grown at the expense of the other branches and the liberties of Americans.

There are other types of presidential directives, and the differences between them are typically not substantive, but some patterns emerge in a large sample.<sup>30</sup> Take executive proclamations, for instance. With the exception of pardons, executive proclamations have often been more ceremonial, directed at the public, hortatory, and less likely to have the force of law—like President George Washington’s proclamation declaring Thanksgiving a national holiday in 1789.<sup>31</sup> Through executive proclamations, presidents often impose restrictions on commerce, especially international commerce, and make other important legal changes that can have tremendous effects on Americans during national emergencies and in relation to federal land management.<sup>32</sup> The Emancipation Proclamation, issued by President Abraham Lincoln to free all the slaves in the Confederate states on January 1, 1863, is the most consequential and praised executive proclamation in history (and rightly so).<sup>33</sup> The difference between executive proclamations and EOs is often “one of form rather than substance.”<sup>34</sup>

Presidential memoranda are another type of executive action, often directed solely at executive branch officials, that can have the same effect as EOs or executive proclamations, with the legal difference being that they are published in the *Federal Register* only if the president determines that they have a “general applicability and legal effect.”<sup>35</sup> National security directives, also known as presidential directives, are yet another type of executive action that formally notifies the head of a federal department or agency of presidential national security decisions. Often, these

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30. Todd Gaziano, “The Use and Abuse of Executive Orders and Other Presidential Directives,” Heritage Foundation, February 21, 2001, p. 9; Tara L. Branum, “President or King? The Use and Abuse of Executive Orders in Modern-Day America,” *Journal of Legislation* 28, no. 1 (2002): 7; and Committee on Government Operations, “Executive Orders and Proclamations: A Study of a Use of Presidential Powers,” House of Representatives, December 1957, p. 1.

31. John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 352, 354; and Benjamin B. Wilhelm, “Presidential Directives: An Introduction,” Congressional Research Service, November 13, 2019, p. 1.

32. Robert B. Cash, “Presidential Power: Use and Enforcement of Executive Orders,” *Notre Dame Law Review* 39, no. 1 (1963): 44; and Benjamin B. Wilhelm, “Presidential Directives: An Introduction,” Congressional Research Service, November 13, 2019, p. 1.

33. Abraham Lincoln, “Emancipation Proclamation,” January 1, 1863.

34. Robert B. Cash, “Presidential Power: Use and Enforcement of Executive Orders,” *Notre Dame Law Review* 39, no. 1 (1963): 44.

35. Abigail A. Graber, “Executive Orders: An Introduction,” Congressional Research Service, March 29, 2021, p. 21; and John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 356.

“implement and coordinate military policy, foreign policy, and other policy deemed to fall within the bounds of national security.”<sup>36</sup> Presidential directives are frequently classified at presidential discretion, and presidents have often refused to notify Congress of their existence.<sup>37</sup> When they sign bills, presidents issue presidential signing statements, which generally offer their interpretation of the law being signed, offer insights into how the executive branch intends to implement it, indicate the law’s constitutional boundaries, and direct agents on administering the new law.<sup>38</sup>

Executive agreements come in three types. The first are international agreements undertaken that are authorized by statute. Such agreements skirt the Constitution’s requirement that two-thirds of the Senate must approve a treaty—but they are at least based on laws passed by a majority of Congress.<sup>39</sup> The second are sole executive agreements that the president makes without an express delegation by Congress.<sup>40</sup> The latter are limited, but here the courts have approved expansions of the scope of presidential power by defaulting to theories of implicit congressional delegations to the president.<sup>41</sup> For example, President Obama defended his decision to enter the Anti-Counterfeiting Trade Agreement without a delegation by Congress on the theory that members of Congress sent a letter calling for the executive to establish such protections with other countries and that such an agreement “fits within the fabric of existing law.”<sup>42</sup> Presidents have also justified entering such agreements by affirming that they are nonbinding, such as when President Obama entered the Paris Agreement to participate in emissions reduction talks.<sup>43</sup> Stretching the limits of implied congressional

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36. John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 357.

37. “Executive Orders in Times of War and National Emergency: Report of the Special Committee on National Emergencies and Delegated Emergency Powers,” Senate, June 1974, pp. 5–6; and John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 357.

38. John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 359–60.

39. US Const. art. II, § 2; and John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 362.

40. John O. McGinnis and Michael B. Rappaport, “Presidential Polarization,” *Ohio State Law Journal* 83, no. 1 (2022): 46.

41. John C. Duncan Jr., “A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role,” *Vermont Law Review* 35, no. 2 (2010): 337.

42. John O. McGinnis and Michael B. Rappaport, “Presidential Polarization,” *Ohio State Law Journal* 83, no. 1 (2022): 48; and Michael D. Ramsey, “Evading the Treaty Power?: The Constitutionality of Nonbinding Agreements,” *FIU Law Review* 11, no. 2 (Spring 2016): 371–87.

43. Michael D. Ramsey, “Evading the Treaty Power?: The Constitutionality of Nonbinding Agreements,” *FIU Law Review* 11, no. 2 (Spring 2016): 371–87; and John O. McGinnis and Michael B. Rappaport, “Presidential Polarization,” *Ohio State Law Journal* 83, no. 1 (2022): 48–49.

consent is bad enough, but to unilaterally enter an international agreement solely on the grounds that it is nonbinding is even worse because doing so increases chaos in international relations and domestic politics. The third type of executive agreement is authorized by a prior treaty.<sup>44</sup>

The total number of EOs is unknown because what counts as an EO is vague, but presidents have issued over 14,000 formally recorded EOs since the beginning of the republic through September 2024.<sup>45</sup> The late historian Clifford L. Lord identified over 1,500 unnumbered EOs and other sorts of executive guidance issued with the force of law. Former secretary of the interior Harold L. Ickes estimated that there could have been as many as 15,000 by the time of FDR's administration, and others have said that there could be as many as 50,000, but such estimates are merely educated guesses at best and more likely shots in the dark.<sup>46</sup> Many early EOs were informal, sometimes consisting of nothing more than the words "I approve," "Approved," "Let it be done," or similar phrases on recommendations submitted to a president by a member of his cabinet.<sup>47</sup> Even a diligent and well-funded research project would be unlikely to identify the true number because the government did not start systematically numbering EOs until 1907.<sup>48</sup> The Federal Register Act of 1935 requires the *Federal Register* to publish EOs and executive proclamations, but the president decides which directives are EOs and which are executive proclamations.<sup>49</sup> Important executive actions such as President Obama's Deferred Action for Childhood Arrivals program of June 15, 2012, which stopped immigration enforcement actions against some illegal immigrants brought to the United States as children and granted many of them work permits, were created by executive memorandum and not listed in the *Federal Register*, even though that

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44. John C. Duncan Jr., "A Critical Consideration of Executive Orders: Glimmerings of Autopoiesis in the Executive Role," *Vermont Law Review* 35, no. 2 (2010): 362.

45. "Executive Orders," *Federal Register*, National Archives.

46. Gerhard Peters and John T. Woolley, "Executive Orders," American Presidency Project, last updated June 1, 2024; and Committee on Government Operations, "Executive Orders and Proclamations: A Study of a Use of Presidential Powers," House of Representatives, December 1957, p. 37.

47. Jennie Holman Blake, "Presidential Power Grab or Pure State Might? A Modern Debate over Executive Interpretations on Federalism," *BYU Law Review* 2000, no. 1 (2000): 296; Robert B. Cash, "Presidential Power: Use and Enforcement of Executive Orders," *Notre Dame Law Review* 39, no. 1 (1963): 46; and Committee on Government Operations, "Executive Orders and Proclamations: A Study of a Use of Presidential Powers," House of Representatives, December 1957, p. 35.

48. Robert B. Cash, "Presidential Power: Use and Enforcement of Executive Orders," *Notre Dame Law Review* 39, no. 1 (1963): 46n17.

49. Federal Register Act of 1935, Pub. L. No. 74-220, 49 Stat. 500 (July 26, 1935); and "Executive Orders in Times of War and National Emergency: Report of the Special Committee on National Emergencies and Delegated Emergency Powers," Senate, June 1974, pp. 3–4.



particular program had a major legal impact on the lives of hundreds of thousands of people.<sup>50</sup> EOs have even described the manner in which subsequent EOs were supposed to be written, but there are few enforceable guidelines.<sup>51</sup> There are likely many EOs that have the force of law yet are unknown to Congress or the public.

FDR issued the most EOs, with 3,721, or an average of 307 per year.<sup>52</sup> The other great (ab)users of EOs were President Woodrow Wilson, who issued 1,803 during his administration; Calvin Coolidge, who issued 1,203; and Theodore Roosevelt, who issued 1,081. After World War II, President Truman issued the most at 907, followed by Dwight D. Eisenhower at 484 and Ronald Reagan at 381. EOs have also become more legislative in nature with broader legal, social, and economic consequences.<sup>53</sup> For example, President Wilson issued EOs that created the War Trades Board and the Grain Corporation during World War I to centrally direct large sectors of the economy during wartime under the authority of the Trading with the Enemy Act of 1917 and the Food and Fuel Control Act of 1917, respectively.<sup>54</sup> The raw number of EOs issued is not a perfect measure of the increase in government power because many EOs repealed older, worse EOs or had practically no effect except to change civil service rules. A simple quantitative measure ignores the impact of each individual EO, but it is roughly correlated with greater government power. Although more recent presidents have issued fewer EOs, modern EOs are, on balance, more legislative in nature, more likely to apply to the general public, and have a more significant impact on American society.<sup>55</sup>

Congress has also enacted at least 137 statutes that grant the president extraordinary powers during emergencies that the president declares and an additional 13 when

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50. Janet Napolitano (secretary of Homeland Security) to David V. Aguilar (acting commissioner, Customs and Border Protection), Alejandro Mayorkas (director, Citizenship and Immigration Services), and John Morton (director, Immigration and Customs Enforcement), "Exercising Prosecutorial Discretion with Respect to Individuals Who Came to the United States as Children," memorandum, Department of Homeland Security, June 15, 2012.

51. Jennie Holman Blake, "Presidential Power Grab or Pure State Might? A Modern Debate over Executive Interpretations on Federalism," *BYU Law Review* 2000, no. 1 (2000): 296; Exec. Order No. 7298, February 18, 1936; Exec. Order No. 10006, 15 Fed. Reg. 5927 (October 12, 1948); and Exec. Order No. 11030, 27 Fed. Reg. 5847 (June 21, 1962).

52. Gerhard Peters and John T. Woolley, "Executive Orders," American Presidency Project, last updated June 1, 2024.

53. Robert B. Cash, "Presidential Power: Use and Enforcement of Executive Orders," *Notre Dame Law Review* 39, no. 1 (1963): 45.

54. "Executive Orders in Times of War and National Emergency: Report of the Special Committee on National Emergencies and Delegated Emergency Powers," Senate, June 1974, p. 3.

55. Gene Healy, *The Cult of the Presidency: America's Dangerous Devotion to Executive Power* (Washington: Cato Institute, 2008), p. 100; Kevin M. Stack, "The Statutory President," *Iowa Law Review* 90, no. 2 (January 2005): 550; and Robert B. Cash, "Presidential Power: Use and Enforcement of Executive Orders," *Notre Dame Law Review* 39, no. 1 (1963): 55.

Congress declares a national emergency, according to the Brennan Center for Justice.<sup>56</sup> Congress can end emergencies with a joint resolution, and the emergencies often have a limited duration in statute, but the president can often expand the duration of the emergency with an additional declaration.<sup>57</sup> The president exercises those emergency powers through EOs and proclamations.<sup>58</sup> For instance, President Donald Trump declared an emergency along the southern border and ordered the construction of a border wall in Proclamation 9844 on February 15, 2019.<sup>59</sup>

## THE EFFECTS OF EXECUTIVE ORDERS

The most obvious constitutional problems with expansive EOs are that they can lead to presidential abuse of power, reduce the separation of powers between the three branches by allowing the president to legislate from the White House, and erode checks and balances. The principle of the rule of law is degraded through a proliferation of EOs that have effects similar to those of legislation because, in many cases, they are unknown to Congress or the public. Democratic accountability is further eroded because the issuance of EOs is infused with an inherent moral hazard. EOs issued by one president can cause problems that the other branches of government or future presidents will have to remedy. This moral hazard affects Congress as well, but EOs are not the result of debate or compromise to the extent that legislation is, and EOs do not constrain those who do the governing like statutes often do.<sup>60</sup>

The effect of EOs goes well beyond the constitutional structure of our government and proper checks and balances. EOs can increase economic uncertainty and rent-seeking, such as in the cases of EO 14110, which will expand government regulatory control over the new artificial intelligence sector; EO 11615, which instituted nationwide wage and price controls; and other EOs to restrict international trade.<sup>61</sup>

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56. "Executive Orders in Times of War and National Emergency: Report of the Special Committee on National Emergencies and Delegated Emergency Powers," Senate, June 1974, p. XII; and Brennan Center for Justice, "A Guide to Emergency Powers and Their Use," last updated June 11, 2024.

57. 50 U.S.C. § 1622.

58. For examples of EOs issued pursuant to emergencies, see "Executive Orders in Times of War and National Emergency: Report of the Special Committee on National Emergencies and Delegated Emergency Powers," Senate, June 1974, pp. 49–206.

59. Proclamation No. 9844, 84 Fed. Reg. 4949 (February 20, 2019).

60. Erica Newland, "Executive Orders in Court," *Yale Law Review* 124, no. 6 (2015): 2083.

61. Exec. Order No. 14110, 88 Fed. Reg. 75191 (November 1, 2023); Exec. Order No. 13435, 72 Fed. Reg. 34591 (June 22, 2007); Exec. Order No. 11615, 36 Fed. Reg. 15727 (August 17, 1971); and Donald J. Trump, "Presidential Memorandum on the Actions by the United States Related to the Section 301

Several EOs relating to racial equity, transgenderism, and homosexuality inserted the president into contentious cultural debates.<sup>62</sup> EOs revoked by a president, reinstated by another, and then revoked again by a third produce a chaotic whirl of uncertainty.<sup>63</sup> Presidents can change EOs at whim, wiping them away with zero public debate and imposing enormous costs on private actors (or relieving them of large burdens).

Government fidelity to the principles of individual liberty, limited government, free markets, and peace is difficult in normal times and impossible to maintain with a strong president wielding legislative and quasi-legislative power. The president isn't entirely to blame: Congress has cooperated with presidents over the centuries to strengthen the latter and weaken the former, but the extent and scale of EOs are a major symptom of an executive branch that is too powerful. The Constitution's system of checks and balances is supposed to make ambition counteract ambition, to paraphrase James Madison.<sup>64</sup> Congress appears to be lacking ambition in all areas save one: delegating its power to a presidency eager to hoard it.<sup>65</sup>

The suggested revocations and amendments in this handbook would affect the operation of the federal government and cover various policy issues that affect the general public, including health care, immigration, foreign policy, trade, defense, and others. Cato scholars have identified and outlined specific reforms to EOs and other presidential directives that conflict with the principles of individual liberty, free markets, limited government, and peace and that often violate the Constitution. This handbook is not a comprehensive list of such executive directives but merely the lowest hanging fruit and best places to begin the long journey back toward constitutionally limited government.

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Investigation," White House, March 22, 2018.

62. Exec. Order No. 14075, 87 Fed. Reg. 37189 (June 21, 2022); Exec. Order No. 13985, 86 Fed. Reg. 7009 (January 25, 2021); and John O. McGinnis and Michael B. Rappaport, "Presidential Polarization," *Ohio State Law Journal* 83, no. 1 (2022): 5.

63. John O. McGinnis and Michael B. Rappaport, "Presidential Polarization," *Ohio State Law Journal* 83, no. 1 (2022): 21; and Christopher J. Deering and Forrest Maltzman, "The Politics of Executive Orders: Legislative Constraints on Presidential Power," *Political Research Quarterly* 52, no. 4 (December 1999): 770.

64. James Madison, *Federalist* no. 51, in *The Federalist Papers*, ed. Clinton Rossiter (New York: New American Library, 1961), pp. 320–25.

65. Erica Newland, "Executive Orders in Court," *Yale Law Journal* 124, no. 6 (2015): 2056.